

The Court today advances the antecedent English pardon power and prior holdings of this Court in support of the legality of the no-parole condition. Neither body of law has established an Executive right to define extra-legislative punishments.¹³ Nor does the historical status of the pardon power in England or analysis of prior non-penal conditions supply any relevance here.

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The English annals offer dubious support to the Court. The majority opinion recounts in copious detail the historical evolution of the pardon power in England. *Ante*, at 260-262. See also *Ex parte Wells*, 18 How. 307, 309-313 (1856). The references to English statutes and cases are no more than dictum; as the Court itself admonishes, "the [pardon] power flows from the Constitution alone." *Ante*, at 266. Accordingly, the primary resource for analyzing the scope of Art. II is our own republican system of government. See *Grosjean v. American Press Co.*, 297 U.S. 233, 248-249 (1936). The separation of powers doctrine does not vest the Chief Executive with an unrestrained clemency power, *supra*, at 274-275, but views his functions as distinct from the other coordinate branches. *Ante*, at 262-264. The references to the early American experience are not dispositive.¹⁴

to the Executive action. A legal opinion from the Attorney General supplies reasoned interpretations but hardly bears the force of law.

¹³ The King's pardon power, from which the President's Art. II power derives, also was subject historically to statutory limitations. See *Ex parte Wells*, *supra*, at 312-313; *id.*, at 322 (McLean, J., dissenting).

¹⁴ With few exceptions conditional pardons were not granted by state governors except where authorized by law, *Ex parte Wells*, *supra*, at 322 (McLean, J., dissenting). The Court's references to the Framers' writings on the pardon power fail to take account of the separation of powers doctrine so fervently embraced by the constitutional drafters. *National Mutual Ins. Co. v. Tidewater Transfer*